

Amendment No. 3 to HB0910

Camper
Signature of Sponsor

AMEND Senate Bill No. 861

House Bill No. 910*

by deleting § 4-21-201(i) in SECTION 2 and substituting:

(i) This section is repealed on July 1, 2026.

AND FURTHER AMEND by deleting § 4-21-202(d) in SECTION 2 and substituting:

(d) This section is repealed on July 1, 2026.

AND FURTHER AMEND by deleting § 4-21-203(c) in SECTION 2 and substituting:

(c) The division is to be funded from the general fund as appropriated in the general appropriations act. Notwithstanding this section or another law to the contrary, effective July 1, 2026, it is the legislative intent that all funding for thirty (30) employment positions allocated to the commission prior to such date is to be transferred to the office of the attorney general and reporter. The attorney general has discretion to determine how and whether to utilize these positions.

AND FURTHER AMEND by deleting § 4-21-304(j) in SECTION 3 and substituting:

(j) This section applies only to matters pending before the commission prior to July 1, 2026, and is repealed and is of no legal effect on or after such date.

AND FURTHER AMEND by deleting § 4-21-305(c) in SECTION 3 and substituting:

(c) This section applies only to matters pending before the commission prior to July 1, 2026, and is repealed and is of no legal effect on or after such date.

AND FURTHER AMEND by deleting § 4-21-306(c) in SECTION 3 and substituting:

(c) This section applies only to matters pending before the commission prior to July 1, 2026, and is repealed and is of no legal effect on or after such date.

AND FURTHER AMEND by deleting § 4-21-307(f) in SECTION 3 and substituting:

(f) This section applies only to orders lawfully entered by the commission prior to July 1, 2026.

AND FURTHER AMEND by deleting § 4-21-308(g) in SECTION 3 and substituting:

(g) This section applies only to matters pending before the commission prior to July 1, 2026, and is repealed and is of no legal effect on or after such date.

AND FURTHER AMEND by deleting § 4-21-309(c) in SECTION 3 and substituting:

(c) The procedures in this section apply only to matters pending before the commission prior to July 1, 2026, and are repealed and are of no legal effect on or after such date.

AND FURTHER AMEND by deleting § 4-21-1201 in SECTION 12 and substituting:

4-21-1201. Dissolution of the commission – Winding up – Pending matters.

(a)

(1) Not later than June 30, 2026, all commission procedures, reports, functions, duties, and records, including, but not limited to, all the commission's case files, must be transferred to the office of the attorney general and reporter. The attorney general is not required to carry out procedures, functions, or duties no longer required by this chapter on or after July 1, 2026.

(2) As part of the transfer of procedures, reports, functions, duties, and records in conjunction with subdivision (a)(1):

(A) The commission and its employees shall fully cooperate with the office of the attorney general and reporter in the execution of this chapter by timely providing requested information and sharing relevant documents and data; and

(B) The attorney general must have access to all documents, data, information, and physical office locations of the commission.

(3) The transfer or sharing of documents, data, records, or other information pursuant to this section does not waive an applicable privilege from disclosure.

(4) If the attorney general determines that a contract, agreement, memorandum of understanding, or lease entered into by the commission prior to July 1, 2026, and still in effect on July 1, 2026, is necessary or appropriate to achieve the purposes of this chapter, then the commission shall assign all rights and duties of such contracts, agreements, memoranda of understanding, or leases to the office of the attorney general and reporter as a successor in interest. The commission shall submit a list and copies of the contracts, agreements, memoranda of understanding, or leases entered into by the commission to the attorney general that will be in effect on July 1, 2026, or subsequent to such date. A contract entered into by the commission must not be assigned to the office of the attorney general and reporter without the attorney general's approval.

(b)

(1) Any complaint that is pending before the commission on June 30, 2026, is terminated and is of no legal effect.

(2) If the commission did not hold a hearing on the pending complaint, the complainant may refile the complaint with the office of the attorney general and reporter or file a private civil action pursuant to § 4-21-311 within ninety (90) days of July 1, 2026.

(3)

(A) If the commission held a hearing on the pending complaint, then the commission must issue a final order no later than June 30, 2026. Should the commission fail to issue a final order on a case for which it has held a hearing, the complaint must be considered dismissed by the commission without prejudice by operation of law.

(B) If a complaint is dismissed without prejudice under this section, then the complainant may refile the complaint with the office of

the attorney general and reporter or file a private civil action pursuant to § 4-21-311 within ninety (90) days of July 1, 2026.

(c)

(1) All lawful orders issued by the commission prior to July 1, 2026, and the remedies included therein remain valid and effective if the commission could lawfully issue such order. The attorney general is authorized to enforce the terms of the orders and may investigate an alleged failure to comply with such orders.

(2) All final orders entered by the commission prior to July 1, 2026, may be subject to judicial review as provided in § 4-21-307.

(d) All conciliation agreements entered into by the commission prior to July 1, 2026, remain valid and may be enforced pursuant to this chapter.

(e) As soon as practicable, but not later than June 30, 2026, the commission shall send written notice to all complainants that the commission will cease to exist on July 1, 2026, and pending complaints are subject to this section.

(f) The state, as represented by the attorney general, is substituted for the commission in all current actions or proceedings beginning on and after July 1, 2026.

AND FURTHER AMEND by deleting from § 4-3-1703(b)(3) of SECTION 13 the language "October 1, 2025" and substituting "October 1, 2026".

AND FURTHER AMEND by deleting § 4-3-1708 in SECTION 14 and substituting:

4-3-1708.

Notwithstanding § 4-21-203(c) or another law to the contrary, it is the legislative intent that, effective July 1, 2026, funding for three (3) employment positions allocated and appropriated to the commission prior to such date is to be transferred to the department of human resources for carrying out its responsibilities under this part. The commissioner of human resources has the discretion to determine how and whether to utilize any associated positions.

AND FURTHER AMEND by deleting SECTIONS 18-23 and substituting:

SECTION 18. Tennessee Code Annotated, Section 4-29-248(a), is amended by inserting the following as a new subdivision:

() Civil rights enforcement division in the office of the attorney general and reporter, created by § 4-21-201;

SECTION 19. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 20. The headings to sections in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in a compilation or publication containing this act.

SECTION 21. Sections 15-17 of this act take effect July 1, 2026, the public welfare requiring it. All other provisions of this act take effect upon becoming a law, the public welfare requiring it.